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LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	20CV366946	Rajesh Raghani vs Samir Maharjan	See below.
9:00 2	24CV436942	John Whitney vs. Ford Motor Company	Motion is withdrawn.
9:00 3	25CV467995	Prashant Tiwari, Phd vs. Monte Kaehr, et.al.	See below
9:00 4	25CV471732	Creditors Adjustment Bureau vs. Olguin and Vazques Landscape and Tree Service	Plaintiff petitions this court to compel defendant to respond to first set of interrogatories Plaintiff timely requested interrogatories and sent the request to Defendant. Defendant never responded. Plaintiff's petition to compel defendant to respond to Plaintiff's first set of interrogatories is GRANTED. Plaintiff's motion for sanctions is GRANTED.
9:00 5	25CV479346	Immigrant Rights Defense Council, LLC vs. My Thi Phuong Nguyen	Plaintiff petitions this court to compel defendant to respond to Plaintiff's request for production of documents. Defendant refused to provide any documents to Plaintiff's request. No objection was filed to Plaintiff's petition. Plaintiff's petiton to compel Defendant to respond to Plaintiff's request for production of documents is GRANTED. Plaintiff's request for monetary damages is GRANTED.
9:00 6	25CV482868	Yiyi Zhang vs. OKBL USA Technology, Inc.	See below
9:00 7	2006-1-CV-059161	National Credit Acceptance, Inc. vs. R. Emblanc	Defendant moves this court to vacate default judgment. Default judgment was entered against defendant as of February 15,2007. Defendant's motion is untimely. Defendant fails to show any statute or facts which would grant him relief from the default judgment. Plaintiff's motion is DENIED.
9:00 8	24CV437781	Rose Bougerba vs. Robert Belstock	Return of warrant
9:00 9	24CV437781	Rose Bougerba vs. Robert Belstock	Return of warrant.
9:01 7	23CV426979	Zaeem Johnson, a minor, by and through his GAL, Chis Johnson and Farhat Khan vs. Mitchell James Wong; Ann Lai Wong; and Does 1 through 15	Plaintiff's attorney moves to withdraw as counsel. Plaintiff's attorney's motion is GRANTED.

Line 1

Case Name: *Rajesh Raghani v. Classic Diamond & Jewelry, LLC et al.*
Case No.: 20CV366946

Plaintiff Rajesh Raghani ("Raghani") has brought a motion for judgment on the pleadings ("JOP motion") as to the operative first amended complaint ("FAC"). Defendants Samir Maharjan ("Maharjan") and Classic Diamond & Jewely, LLC ("Classic Diamond") (together, "Defendants") oppose the motion. By way of background, the court notes that on May 26, 2026, it denied Defendants' motion to grant relief from the court's previous order deeming certain admissions as true. As the court discusses further below, these admissions form the basis of Raghani's JOP motion.

The court GRANTS judicial notice of Exhibit A, the court's order "deeming matters in requests for admission admitted," to Raghani's request for judicial notice in support of Raghani's JOP motion. (Raghani's Request for Judicial Notice, Ex. A.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).)

The court GRANTS judicial notice of Exhibits A through H to Defendants' request for judicial notice in support of Defendants' opposition to Raghani's JOP motion. (Defendants' Request for Judicial Notice, Exs. A-H; see Evid. Code, § 452, subd. (d).)

"A plaintiff's motion for judgment on the pleadings is analogous to a plaintiff's demurrer to an answer and is evaluated by the same standards. The motion should be denied if the defendant's pleadings raise a material issue or set up affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the *defendant's* allegations as being true." (*Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331, internal citations omitted, emphasis original.) "Where the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted." (*Barasch v. Epstein* (1957) 147 Cal.App.2d 439, 443, internal citation omitted.)

The court DENIES Raghani's JOP motion. Raghani "seeks judgment for the amounts set forth in the complaint, including punitive damages as pleaded, on the ground that the complaint states facts sufficient to constitute causes of action and, because the matters in Plaintiff's Request for Admissions have been deemed admitted, Defendants do not and cannot state facts sufficient to constitute a defense." (Notice of JOP Motion, pp. 1:26-2:2.) "A plaintiff may recover judgment on a motion for judgment on the pleadings only if his complaint states facts sufficient to constitute a cause of action and the answer neither raises a material issue nor states a defense." (*McClain v. City of South Pasadena* (1957) 155 Cal.App.2d 423, 430 (*McClain*), internal citation omitted). Here, Raghani's motion states that the complaint's allegations are "sufficient on their face," lists the admissions deemed admitted, and states that the "deemed admissions conclusively establish Defendants' liability on all causes of action." (Memorandum of Points and Authorities in Support of JOP Motion ("MPA"), pp. 2:12-6:26;.see also *id.* at p. 6:9-12 ["These admissions establish every element of Plaintiff's wage-and-hour causes of action and negate any possible defense. Because the deemed admissions conclusively resolve liability and leave no material issue in dispute, judgment on the pleadings is appropriate under Code of Civil Procedure section 438."].) Outside of listing the deemed admissions, Raghani's JOP motion does not discuss how the FAC pleads facts sufficient to constitute its nine causes of action—it does not, for example, list the elements or standard applicable to of any cause of action alleged—or how the admissions deemed admitted by the court relate to these causes of action. (See *Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 52 [the court is not required to "supply arguments for the litigants"], internal citations omitted.) On reply, Raghani lists the deemed admissions relevant to the FAC's wage and hour claims, statutory record production claims, wrongful constructive termination claim, and unfair competition law claim, again without any substantive discussion of whether the FAC pleads any of these causes of action sufficiently. (Reply in Support of JOP Motion, pp. 3:20-5:20.) Moreover, to the extent Raghani intended this section of the reply brief to address Defendants' point that Raghani's JOP motion "fails to actually explain how the RFAs prove the elements of each cause of action," courts do not consider points raised for the first time in a reply brief. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066.) Relatedly, the court notes that the FAC's seventh cause of action alleges liability under Labor Code section 226.8. (FAC, ¶¶ 86-96.) But, as Defendants point out in their opposition, Labor Code section 226.8 does not recognize a private right action. (See Opposition to JOP Motion ("Opposition"), pp. 8:21-9:7; *Noe v. Superior Court* (2015) 237 Cal.App.4th 316, 341 ["Because section 226.8 does not provide a private right of action . . ."]; see also *id.* at p. 326 ["Thus, while the UCL and the PAGA claims might provide plaintiffs some form of remedy for a violation of section 226.8, those remedies are qualitatively different than the penalties they might recover in a direct action to enforce section 226.8."].) Raghani has "withdrawn" its JOP motion to the seventh cause of action, seemingly on this basis. (Reply, p. 8:1-2.)

Moreover, Raghani argues that he is entitled to an award of punitive damages under Civil Code section 3294 because the FAC pleads punitive damages and the deemed admissions establish that Defendants engaged in intentional, willful, and malicious conduct. (MPA, pp. 7:1-8:2.) The only cause of action in the FAC that seeks punitive damages is the FAC's ninth cause of action for wrongful termination in violation of public policy. (FAC, ¶ 113.) Therefore, the court disagrees with Raghani's argument that the "operative complaint pleads punitive damages in connection with multiple causes of action, not solely the ninth." (MPA, p. 7:22-23.) The court further notes that Civil Code section 3294 states that in "an action for the breach of an obligation not arising from contract, *where it is proven by clear and convincing evidence* that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294, subd. (a), emphasis added.) The deemed admissions discussed in Raghani's brief do not establish by clear and convincing evidence that Defendants engaged in oppressive, fraudulent, or malicious conduct. (MPA, pp. 3:18-6:8.) The court is inclined to agree with Defendants that the deemed admissions "largely concern legal conclusions, rather than anything about the reasons or motivations for Defendants' actions." (Opposition, p. 7:9-12.) Nor, for that matter, is it clear to the court that a party can obtain punitive damages on a JOP motion. (See Civ. Code, § 3295, subd. (e) ["No claim for exemplary damages shall state an amount or amounts."]; Civ. Code, § 3294, subd. (a) ["In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence . . ."].)

This discussion of punitive damages raises a more general issue with Raghani's JOP motion. A JOP motion is the functional equivalent of a demurrer. As such, the function of a JOP motion is to test the legal sufficiency of the pleadings. (*Richtek USA, Inc. v. uPI Semiconductor*

Corporation (2015) 242 Cal.App.4th 651, 660.) In determining a demurrer, a court "may look to affidavits filed on behalf of plaintiff, and the plaintiff's answers to interrogatories . . . as well as to the plaintiff's response to request for admissions." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604, internal citations omitted.) The court can "take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court." (*Id.* at pp. 604-605, emphasis added.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Id*. at p. 605, internal citation omitted.) Furthermore, the court notes that a " defendant's (or cross-defendant's) motion for summary judgment tests the existence of evidence to support the complaint's (or cross-complaint's) allegations. . . . In a motion for summary judgment, judicial notice or an evidentiary admission or concession by the pleader/adversary can support the motion and thrust the burden on the pleader to come forward with facts in rebuttal. In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted. The same is true of evidentiary admissions or concessions." (*Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 468, internal citations omitted; see *ibid*. [the "contrasting treatment of writings incorporated by reference which varies from express allegations of the pleading and the distinction in impact of judicial notice and evidentiary admissions or concessions in motions for summary judgment and motions for judgment on the pleadings . . ."].) Taking all of this into account, Raghani's arguments based on the deemed admissions are more properly suited for a motion for summary judgment or adjudication, not for judgment on the pleadings.

Line 3

Case Name: *Tiwari v. Kaehr, et al.*

Case No.: 25CV467995

On April 12, 2022, plaintiff Prashant Tiwari ("Plaintiff") filed a claim with the U.S. Equal Employment Opportunity Commission ("EEOC") asserting that he was subjected to discrimination on the basis of race and national origin, a hostile work environment, retaliation and failure to prevent discrimination, a hostile work environment and retaliation that occurred most recently on February 8, 2022. On November 14, 2022, Plaintiff filed a demand for arbitration with Judicial Arbitration and Mediation Services Inc. ("JAMS"). After respondents Toyota Motor North America, Inc., Toyota Motor Corporation and Toyota Infotechnology

Center, U.S.A., Inc.'s motions for summary judgment were granted in part, on July 2, 2024, arbitrator Hon. Robert A. Baines entered a final award denying Plaintiff's claims in their entirety. On August 16, 2024, respondents filed a petition to confirm the arbitration award. On September 5, 2024, Plaintiff filed a petition to vacate the arbitration award. On June 12, 2025, Plaintiff then filed a complaint, again asserting causes of action for discrimination, a hostile work environment, retaliation and failure to prevent discrimination. On July 12, 2025, the Court [Hon. Hayashi] confirmed the arbitration award and denied Plaintiff's request to set aside the arbitration award and entered judgment. On September 8, 2025, Plaintiff appealed the judgment.

Defendants Toyota Motor North America, Inc., Toyota Infotechnology Center, U.S.A., Inc., Toyota Motor Engineering & Manufacturing North America, Inc., Monte Kaehr, Shannon Cummings and Nick Sitarski (collectively, "Defendants") demur to the complaint. Plaintiff moves for leave to file a first amended complaint and to compel the deposition of PMKs, Kaehr, Cummings and Sitarski.

Here, it appears that the causes of action of the instant complaint are indeed identical to those asserted in the arbitration. Plaintiff's arguments in opposition are also the same as those currently being made in the appeal before the Sixth District.

The Court hereby stays this case pending the outcome of the appeal. (See *Bailey v. Fosca Oil Co.* (1963) 216 Cal.App.2d 813, 817 (stating that "the power of a court to stay proceedings in circumstances similar to those presented here was inherent at common law and is now vested in the superior courts of this state… [and may be] necessary to prevent a multiplicity of trials and procedures as to identical issues… the inherent power of a trial court to exercise a reasonable control over all proceedings connected with the litigation before it… should be exercised by the courts in order to insure the orderly administration of justice"); see also *Hernandez v. FCA US LLC* (2020) 50 Cal.App.5th 329, 338 (stating that "[a] court has inherent power to exercise reasonable control over all proceedings connected with the litigation before it"); see also *Simmons v. Superior Court of Los Angeles County* (1950) 96 Cal.App.2d 119, 130 (stating that "[w]here the rights of the parties to the second action cannot be properly determined until the questions raised in the first action are settled the second action should be stayed… [e]quity abhors a multiplicity of actions… [i]t is the policy of the law to reduce to the minimum the number of actions which may subsist between the same parties").)

The hearing on Defendants' motion for sanctions, scheduled for June 16, 2026, Defendants' demurrer, and Plaintiff's motion for leave to file an amended complaint and motion to compel depositions are continued to March 9, 2027 at 9:00 a.m.

A case management conference is hereby scheduled for December 8, 2026 at 10:00 a.m. in Department 6 to check the status of the appeal and to determine whether the hearing on the motions needs to be continued further.

Line Item #6

Case Name: *Zhang v. OKBL USA Technology*

Case No.: 25CV482868

BACKGROUND

Defendant OKBL USA Technology Inc. ("Defendant" or "OKX") is a "cryptocurrency exchange company that operates a digital asset trading platform and markets related financial products and services throughout the United States and across the globe." (Declaration of Shone Barton ["Barton Decl."] at ¶ 2.) Plaintiff Yiyi Zhang ("Plaintiff") was employed by OKX as a Content Product Designer on August 15, 2024. (Complaint at ¶ 53.) As part of the onboarding process, Plaintiff executed an Employment Agreement which included (i) a Confidentiality and Work Product Agreement; and (ii) an Arbitration Agreement. (Barton Decl. at ¶ 6.)

Plaintiff's employment was terminated on August 1, 2025. (Barton Decl. at ¶ 3.) On December 22, 2025, Plaintiff filed suit against Defendant alleging causes of action for violations of the Fair Employment and Housing Act including (1) discrimination; (2) retaliation; (3) failure to prevent discrimination and retaliation; (4) failure to provide reasonable accommodations; (5) failure to engage in a good faith interactive process; (6) declaratory judgment; and (7) wrongful termination in violation of public policy.

Defendant now moves to compel arbitration pursuant to the Arbitration Agreement ("the Agreement") that was electronically signed by Plaintiff during the onboarding process. Defendant argues the Agreement's delegation clause clearly and unmistakably delegates all issues of arbitrability and enforceability to the arbitrator. Plaintiff argues the Arbitration Agreement, including the delegation clause, is unconscionable. Having reviewed the Agreement, the Court agrees with Defendant and grants the motion.

LEGAL STANDARD

Defendant argues the Agreement is governed by the Federal Arbitration Act ("FAA") based on the language itself and because its operations affect interstate commerce. (Mtn. to Compel Arbitration at pp. 9:14-10:22.) The Agreement provides the parties shall submit to "final and binding arbitration in accordance with the Federal Arbitration Act." (Barton Decl., Ex. A.) Plaintiff's job duties at OKX included "ensuring content quality and elevating the user experience on OKX's online cryptocurrency exchange platform, which is accessed by consumers throughout the United States and the world." (*Id.* at ¶ 3.) Plaintiff interacted with employees outside of California and used interstate channels or online tools to collaborate with team members. (*Ibid.*)

The basic coverage provision of the FAA "makes the law applicable to contracts evidencing a transaction 'involving commerce' (9 U.S.C. § 2), which language reflects that Congress intended the law's coverage to extend to the full reach of its commerce clause power." (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) The Court finds that this satisfies the interstate commerce requirement that in any event, "[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA." (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. "The moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158 [internal citations and quotations omitted].) Defendant has attached a copy of the Arbitration Agreement to its motion, and has, therefore, met its initial burden. (Barton Decl., Ex. A.) The Agreement provides in relevant part:

> Employee and OKBL USA Technology Inc. and its parents, subsidiaries and affiliates (collectively, the "<u>Company</u>") mutually agree that any and all existing or future claims or controversies arising out of or relating to Employee's employment, the termination thereof, or otherwise arising between Employee and the Company shall, in lieu of a jury or other civil trial, be settled by final and binding arbitration in accordance with the Federal Arbitration Act. This arbitration agreement ("<u>Agreement</u>") includes all claims whether arising in tort or contract and whether arising under statute or common law including, but not limited to, any claim of breach of contract, discrimination or harassment of any kind. For avoidance of doubt, this Agreement shall include all claims or controversies that may have already arisen between Employee and the Company.

(*Ibid.*)

Here, Plaintiff affixed her electronic signature to the Agreement on August 2, 2024. (Barton Decl., Ex. A, B.) "A party's acceptance of an agreement to arbitrate may be express, as whether a party signs the agreement." (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) Moreover, "[u]nder Civil Code section 1633.7 . . . an electronic signature has the same legal effect as a handwritten signature." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The authenticity of an electronic signature may be established by detailing the "security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement." (*Id.* at p. 1062.)

In August 2024, OKX used DocuSign "to facilitate the review and execution of onboarding documents by employees." (Barton Decl. at ¶ 5.) DocuSign uses security protocols designed so that only the employee to whom the document is sent can access and electronically sign the document. (*Ibid.*) Employees were required to create a personalized signature and sign documents on DocuSign. (*Ibid.*) Records show that on August 2, 2024, OKX sent Plaintiff a written offer of employment alongside an Employment Agreement which included (i) a Confidentiality and Work Product Agreement, and (ii) an Arbitration Agreement. (Barton Decl. at ¶ 6.) These documents were transmitted via DocuSign to Plaintiff's personal e-mail address. (*Ibid.*) Plaintiff electronically received and signed the Employment Agreement, Confidentiality Work Product Agreement, and Arbitration Agreement on August 2, 2025 at 5:02 p.m. (Barton Decl. at ¶¶ 6, 8, Exs. A & B.) Defendant's account of this process is sufficient to authenticate Plaintiff's signature.

To the extent Plaintiff argues she did not understand the meaning of the document she was signing, "[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that "one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language." (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.) Thus, based on Plaintiff's electronic signature, mutual assent exists between the parties, and Plaintiff is bound by the terms of the Agreement. Defendant has established a valid agreement to arbitrate between the parties.

All Other Issues are Delegated to the Arbitrator

Defendant argues all other issues must be delegated to the arbitrator based on the existence of the delegation clause. (Mtn. to Compel Arbitration at pp. 12:19-13:14.) The question of whether the parties agreed to arbitrate a particular dispute is generally to be decided by the court. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 649.) The parties may, however, agree to submit the arbitrability question itself to arbitration. (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943.) Courts should find that the parties agreed to arbitrate arbitrability only where there is clear and unmistakable evidence that they did so, resolving any ambiguity in favor of a finding that the issue is for the court to determine. (*Id.* at pp. 944-45.) "An arbitration provision's reference to, or incorporation of, arbitration rules that give the arbitrator the power or responsibility to decide issues of arbitrability may constitute clear and unmistakable evidence the parties intended the arbitrator to decide those issues." (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 893 (*Aanderud*).)

In this regard, the Agreement provides: "Employee and Company also agree to submit claims to the arbitrator regarding issues of arbitrability, the validity, scope, and enforceability of this Agreement, his or her jurisdiction, as well as any gateway, threshold, or any challenges to this Agreement, including claims that this Agreement is unconscionable." (Barton Decl., Ex. A.) The language of the delegation clause here is clear and unmistakable that the parties agreed to delegate not just threshold issues of arbitrability but specifically issues of enforceability including unconscionability to the arbitrator. The Agreement also includes reference to the JAMS Employment Arbitration Rules & Procedures ("JAMS Rules"), which is further evidence that the parties intended the arbitrator to decide those issues. (See Barton Decl., Ex. A.) Plaintiff does not dispute the existence of the delegation clause. (Reply at p. 8:13-14.) Rather, Plaintiff attempts to argue the delegation clause is unconscionable. (Opposition at p. 6:5-16.)

The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).) This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa.

(*Id.* at pp. 125-126.) Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the "weaker" party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra,* 8 Cal.5th at pp. 125-129.)

"When determining whether a delegation clause is unconscionable, any claim of unconscionability must be specific to the delegation clause." (*Aanderud, supra,* 13 Cal.App.5th at p. 895 [citing *Rent-A-Center, W., Inc. v. Jackson* (2010) 56 U.S. 63, 73 (*Rent-A-Center*).) "If the party's challenge is directed to the agreement as a whole—even if it applies equally to the delegation clause—the delegation clause is . . . enforced . . [and] the arbitrator, not the court will determine whether the agreement is enforceable." (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1560.)

Plaintiff makes only one argument that is specific to the delegation clause. Plaintiff argues that it was imposed as a condition of employment. (Opposition at p. 6:9-10.) Indeed, the delegation clause is part of a contract of adhesion as it was drafted by OKX and presented to Plaintiff on a take-it-or-leave-it basis. This type of contract of adhesion in the employment context, however, only presents a low degree of procedural unconscionability, and is not augmented given the absence of other factors. (See *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248.) To the extent Plaintiff argues the terms were hidden, the Arbitration Agreement is referenced on the third page of the employment agreement and prominently entitled in bold and capitalized font. (Reply at p. 11:12-23; Barton Decl., Ex. A.) (See cf. *Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1250-1251 [noting that procedural unconscionability has been found where the presence of an arbitration provision has not been distinguished through bold lettering, larger font, or capitalization].) The Arbitration Agreement is also only three paragraphs long with the class action waiver separately stated.

Even if the delegation clause is procedurally unconscionable, Plaintiff has not shown that it is substantively unconscionable. Plaintiff's remaining arguments are directed toward the entirety of the Arbitration Agreement. (Reply at pp. 8:21-10:2.) Plaintiff argues (1) she is forced to arbitrate statutory rights, (2) there is improper fee shifting to the prevailing party, (3) arbitration is required "before a private provider under terms conflicting with that provider's employee-protective rules," and (4) the Agreement's fee/cost exposure language conflicts with JAM's employee-protective minimum standards.

To the extent this implicates the delegation clause, courts are not precluded "from using unconscionability doctrine on a case-by-case basis to protect nonindigent consumers against fees that unreasonably limit access to arbitration." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 920.) The Agreement here provides "[e]mployee shall not be required to pay any type or amount of expense relating to the arbitration if such requirement would invalidate this Agreement or would otherwise be contrary to the law as it exists at the time of arbitration." (Barton Decl., Ex. A.) Thus, the Agreement does not impose any unreasonable fees or expenses on Plaintiff for the costs of arbitration. (See Reply at . 13:1-4.) In addition Rule 31(c) of the JAMS Rules provides "[i]f an Arbitration is based on a clause or agreement that is required as a condition of employment, the only fee that an Employee may be required to pay is the initial JAMS Case Management Fee." Plaintiff's costs, therefore, will most likely be limited to the initial JAMS Case Management Fee. The Agreement does not conflict with the JAMS Rules in this regard. Plaintiff has not identified any other JAMS Rules that conflict with the Agreement, nor has Plaintiff demonstrated that the delegation clause is substantively unconscionable.

In any event, Plaintiff's remaining arguments apply to the entirety of the Agreement and should be heard by the arbitrator. It would be improper for the Court to consider unconscionability in light of its specific inclusion in the clear and unmistakable delegation clause. For these reasons, the Court GRANTS the Motion to Compel Arbitration.

CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. (9 U.S.C. § 3.)